

benefits, other than nonoccupational disability benefits, under any workers' compensation law, the arbitrator shall not proceed with the arbitration until the insured's physical condition is stationary and ratable. In those cases in which the insured claims a permanent disability, the claims shall, unless good cause be shown, be adjudicated by award or settled by compromise and release before the arbitration may proceed. **Any demand or petition for arbitration shall contain a declaration, under penalty of perjury, stating whether (i) the insured has a workers' compensation claim; (ii) the claim has proceeded to findings and award or settlement on all issues reasonably contemplated to be determined in that claim; and (iii) if not, what reasons amounting to good cause are grounds for the arbitration to proceed immediately.**

(Emphasis added.)

Valencia has not submitted such a declaration. Valencia's attorney Sutton Shapiro submitted a declaration in October 2024 that does not mention the workers' compensation claim, let alone state that the claim proceeded to findings and award or settlement on all issues reasonably contemplated to be determined in that claim. (Jewell Decl., Exh. C.) Valencia's workers' "compensation claim ... has [undisputably not] proceeded to findings and award or settlement on all issues reasonably contemplated to be determined in that claim." The motion does not establish "what reasons amounting to good cause are grounds for the arbitration to proceed immediately." (Ins. Code, § 11580.2, subd. (f)(iii).) Accordingly, the motion is denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

#### **Tentative Ruling**

**Issued By:**          **on**     6-29-26    .

(Judge's initials)

(Date)

(49)

### Tentative Ruling

Re: ***Nelson Properties v. Affordable Roofing et al.***  
Superior Court Case No. 25CECG01711

Hearing Date: July 2, 2026 (Dept. 502)

Motion: By Defendant APOC Roof Systems, Corp. on Demurrer to the Complaint and Motion to Strike

**If oral argument is timely requested, it will be entertained on Wednesday, July 15 2026, at 3:30 p.m. in Department 502.**

**Tentative Ruling:**

To overrule the demurrer as moot. (Code Civ. Proc., § 472, subd. (a).)

To deny the motion to strike as moot. (Code Civ. Proc., § 472, subd. (a).)

**Explanation:**

A party may amend its pleading any time after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition. (Code Civ. Proc., § 472, subd. (a).) Here, plaintiff Nelson Properties timely filed a first amended complaint on June 17, 2026 in lieu of an opposition to the demurrer filed by defendant APOC Roof Systems, Corp. The matter is now mooted by a superseding pleading, the demurrer is overruled and the motion to strike is denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

## Tentative Ruling

Issued By: img on 7-1-26  
(Judge's initials) (Date)